

Circular Memo.No.233/Spl.C/A1/2005-1, G.A. (Spl.C) Dept., dt.28.04.2005 regarding instructions on the penalty to be commensurate with the gravity of charges.

Subject Heading : Public Servants – Consulting APVC after conclusion of Departmental Inquiries – Penalty to be commensurate with gravity of charges - Regarding.

Ref : 1. G.O.Ms.No.421, G.A. (SC.D) Dept., dt.03.08.1993.

2. U.O.Note No.598/SC.E3/99-1, GA (SC.E) Dept., dt.26.02.1999.

3. U.O.Note No.23552/Ser.C/97-1, G.A. (Ser.C) Dept., dt.07.05.1997.

In the references 1st and 2nd cited, instructions were issued to the effect that in disciplinary cases, where there is vigilance angle, disciplinary authorities have to obtain the advice of A.P.Vigilance Commission without fail after conclusion of the Departmental inquiries, i.e., after receipt of report of Inquiring Authority and the representation of Government Servant. Thereafter considering the advice of A.P. Vigilance Commissioner, vis-à-vis, the findings of Inquiring Authority and the representation of Government Servant, the Departments have to obtain orders of competent authority either for imposition of any penalty as stipulated under the relevant disciplinary rules or otherwise.

2. Instructions were also issued to the effect that the disciplinary authority shall keep in mind that the penalty proposed to be imposed under Rule 9 of A.P.C.S. (CC&A) Rules, 1991 is commensurate with the gravity of charge established.

3. In spite of above instructions, it has been brought to the notice, that some disciplinary authorities are not seeking advice of A.P. Vigilance Commission after conclusion of the Departmental inquiries and that penalties are being imposed without taking into consideration of gravity of charges established.

4. All the Departments of Secretariat / Heads of Departments / all District Collectors are requested to follow the above instructions scrupulously in disciplinary cases, without fail.